

		(Defendant's Opp). The Separate Statement, filed concurrently with the motion, establishes that for many RFAs Defendant responded "unknown". Defendant also denied several RFAs. (See Separate Statement, ROA 56) On December 17, 2025, Plaintiff mailed a meet and confer letter as required by CCP § 2033.290(b)(1). In response to this Motion, Defendant Montgomery merely states that she served responses on December 16, 2025. Therefore, Motion is GRANTED as to RFAs 20, 22, 32, 40, 42, and 43 wherein Defendant evasively responded "unknown". To the extent this motion is directed to responses where Defendant equivocally denied or admitted an RFA, the motion is DENIED pursuant to the authority set forth above. Plaintiff's request for sanctions is DENIED as not having been properly noticed. ["A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." Code Civ. Proc., § 2023.040.] Furthermore, in pro per parties cannot recover discovery sanctions. [See <i>Argaman v. Ratan</i> (1999) 73 Cal.App.4th 1173, 1179; <i>Kravitz v. Sup.Ct. (Milner)</i> (2001) 91 Cal.App.4th 1015, 1021.] <i>Plaintiff to give notice.</i>
105	Godoy vs. Godoy, 24-01413474	<i>Off-Calendar.</i>
106	McKesson Medical Surgical, Inc. vs. Gordian Medical, Inc., 25-01500196	Specially Appearing Defendant Gordian Medical, Inc. ("Defendant") moves to quash service of summons and dismiss the action against it for lack of personal jurisdiction. "Due process permits the exercise of personal jurisdiction over a nonresident defendant in the following four situations: (1) where the defendant is domiciled in the forum state when the lawsuit is commenced; (2) where the defendant is personally served with process while he or she is physically present

	in the forum state; (3) where the defendant consents to jurisdiction; and (4) where the defendant has sufficient 'minimum contacts' with the forum state, such that the exercise of jurisdiction would not offend 'traditional notions of fair play and substantial justice.' " (<i>In re Marriage of Fitzgerald & King</i> (1995) 39 Cal.App.4th 1419, 1425-1426 [internal citations omitted].) "When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction." (<i>Vons Companies, Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 449.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate." (<i>Strasner v. Touchstone Wireless Repair and Logistics, LP</i> (2016) 5 Cal.App.5th 215, 222.) The Plaintiff must establish jurisdiction "by a preponderance of the evidence." (<i>Shisler v. Sanfer Sports Cars, Inc.</i> (2006) 146 Cal.App.4th 1254, 1259.) "Once facts showing minimum contacts with the forum states are established, however, it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (<i>Vons Companies, Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 449.) "When there is conflicting evidence, the trial court's factual determinations are not disturbed on appeal if supported by substantial evidence." (<i>Ibid.</i>) Here, the only evidence Plaintiff provides to support its claim that this Court has personal jurisdiction over Defendant is the declaration of Plaintiff's counsel. Counsel declares that "Defendant was personally service [sic] on September 19, 2025, via the registered agent for service of process according to the Secretary of State website. Attached hereto as Exhibit 'A' is a true and correct copy of the Secretary of State website which shows the agent for service of process registered by Defendant. Attached hereto as Exhibit 'B' is a true and correct copy of the filed Proof of Service." (Hettena Decl. ¶3.) However, counsel's declaration does not contain the
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		requisite certification that the statements made therein are under penalty of perjury. (See CCP §2015.5.) Thus, the statements cannot be considered evidence. Further, while Plaintiff discusses numerous other documents in its opposition, none of those documents have been authenticated. The Court therefore cannot consider them in connection with this motion. Accordingly, Plaintiff has failed to meet its burden of demonstrating jurisdiction. Even if the Court were to consider counsel's declaration, a foreign corporation's designation of an agent for service of process in California is not a submission to personal jurisdiction here. I.e., although service of summons may be made on the designated agent, the action cannot be maintained against a foreign corporation absent "minimum contacts" with California. (<i>Gray Line Tours of Southern Nevada v. Reynolds Electrical & Engineering Co., Inc.</i> (1987) 193 Cal.App.3d 190, 193-194; <i>Thomson v. Anderson</i> (2003) 113 Cal.App.4th 258, 270.) In contrast, Defendant has submitted evidence that it has virtually no contacts with California. (See Danner Dec. at ¶¶ 1-3.) Defendant is a Nevada corporation with its principal place of business in the State of Kentucky. (Danner Decl. ¶ 3.) Defendant does not maintain any corporate offices or distribution centers in the State of California, as Defendant vacated its California office on or about September 30, 2024. (Ibid.) Furthermore, Defendant maintains only one warehouse and distribution center in Frankfort, Kentucky. (Id.) Accordingly, the motion is GRANTED pursuant to Code of Civil Procedure section 418.10(a)(1). The Case Management Conference is continued to July 30, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
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107	Iorio vs. Certified HOA Management, Inc., 24-01421374	<i>Off-Calendar.</i>
108	Abitong vs. FCA US, LLC, 25-01458981	<i>Off-calendar. The Case Management Conference will proceed as scheduled.</i>
109	The People of the State of California vs. Super 8 Gas Corporation, 22-01255181	<u>Application for OSC re: Contempt</u> Plaintiff The People of the State of California (the "People") apply for the Court to set an Order to Show Cause requiring defendants Super 8 Gas Corporation and Saleh Omar to show cause as to why they should not be held in contempt of this Court's Order issued on August 21, 2025. "As a general rule, the elements of contempt include (1) a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful failure to comply with the order. [Citations.]" (<i>In re Ivey</i> (2000) 85 Cal.App.4th 793, 798; <i>accord, Wanke, Indus., Commercial, Residential, Inc. v. Superior Court</i> (2012) 209 Cal.App.4th 1151, 1168 (<i>Wanke</i>).) The subject order assessed \$50,000 in penalties against Defendants Super 8 Gas and Saleh Omar ("Defendants"). Defendants were ordered to pay \$50,000 as follows: \$25,000 to Orange County District Attorney's Office and \$25,000 to Riverside County District Attorney's Office. Payment was to be made within 30 days of service of the order. (ROA 45.) The People filed their Application for OSC re: Contempt on 10/31/25. (ROA 49.) At the time, the People indicated that on 9/26/25, Defendants paid \$10,000 (\$5,000 to Riverside County and \$5,000 to Orange County). (ROA 49, Park Decl. ¶12.) On 1/28/26, the People filed a supplemental declaration in which it was indicated that additional \$5,000 payments were made to each of the counties in November 2025 and in January 2026 (ROA 52 ¶¶9-12.) On 4/6/26, in connection with their motion to seal, the People filed the declaration of attorney Susan Park, who indicates that "[a]s of March 11, 2026, the defendants have fully paid \$50,000